

SENATE BILL 1039

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 33;
Title 63 and Title 68, relative to substance use.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 11, Part 15, is amended by adding the following as a new section:

(a) A healthcare facility licensed under this chapter shall not authorize any licensed, certified, or authorized healthcare professional to perform:

(1) A drug or alcohol test or screen on a patient who is pregnant or less than one (1) year postpartum unless:

(A) The pregnant or postpartum patient provides prior written and oral informed consent utilizing a tool or questionnaire specific for the drug or alcohol test or screen; and

(B) The performance of the drug or alcohol test or screen is within the scope of medical care being provided to the individual; or

(2) A drug or alcohol test or screen on a newborn unless:

(A) The individual authorized to consent for the newborn gives prior written and oral informed consent specific to the drug or alcohol test or screen; and

(B) The performance of the drug or alcohol test or screen is within the scope of medical care being provided to the newborn.

(b) The written and oral informed consent to a drug or alcohol test or screen as described in subsection (a) must:

- (1) Occur at the time of testing in a language understandable to the pregnant or postpartum patient;
- (2) Provide the patient sufficient opportunity to consider whether or not to authorize the drug or alcohol test or screen;
- (3) Minimize the possibility of coercion or undue influence, and
- (4) Consist of written and oral authorization that is dated and signed, and includes the following:

(A) A statement explaining that consenting to a drug or alcohol test or screen is voluntary and requires written and oral informed consent, except when conditions as described in subsection (c) are met;

(B) A statement that testing positive for drugs or alcohol could have legal consequences, including potentially being reported to the department of children's services and that the patient may want to consult with legal counsel prior to or after consenting to a drug or alcohol test or screen;

(C) A statement of the medical purpose of the test or screen;

(D) The extent of confidentiality of the test or screen results; and

(E) A general description of the test or screen.

(c)

(1) A drug or alcohol test or screen may be performed or authorized without the consent of the patient or the individual authorized to consent for the newborn when, in the healthcare professional's judgment, an emergency exists and the patient or newborn is in immediate need of medical attention, and an attempt to secure consent would result in a delay of treatment that could increase the risk to the patient's or newborn's life or health.

(2) In the case that drug or alcohol testing or screening is performed or authorized under this subsection (c), the test or screen results must be discussed with the patient or the individual authorized to consent for the newborn in language understandable to the patient or individual authorized to consent for the newborn and must consist of written and oral notification that is dated and signed, and includes a statement:

(A) That testing or screening positive for drugs or alcohol could have legal consequences, including potentially being reported to the department of children's services, and that the patient or individual authorized to consent for the newborn may want to consult with legal counsel;

(B) In the medical record with a description of the emergency that necessitated unconsented drug or alcohol testing or screening; and

(C) Explaining the extent of confidentiality of the test or screen results.

(d) A healthcare facility licensed under this chapter shall not authorize any licensed, certified, or authorized healthcare professional to refuse to treat a pregnant patient or a patient who is less than one (1) year postpartum or a newborn because of the patient or individual authorized to consent for the newborn's refusal to submit to a drug or alcohol test or screen.

(e) A patient's right to privacy as described in this part must extend to patients in the pregnancy and postpartum period and newborns.

(f) This section does not diminish any other requirement to obtain informed consent for a drug or alcohol test or screen or any other procedure.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it, and applies to prohibited conduct occurring on or after such date.